



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 1 - 1991

DOT-E 10593

1. BP Chemicals, Incorporated, Cleveland, OH, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a Corrosive material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one-time shipment of (13) DOT Specification 112J400W tank car tanks, whose contents exceed the maximum permitted filling density for liquified petroleum gas and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on BP Chemical, Incorporated's application of April 25 and 29, 1991, submitted in accordance with 49 CFR 107.113, and a determination that is necessary to protect life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquified petroleum gas classed as a Flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Liquified petroleum gas

5. REGULATION AFFECTED. 49 CFR 173.314(c)

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight

7. SAFETY CONTROL MEASURES. Packagings prescribed are DOT Specification 112J400W tank car tanks meeting all DOT requirements (49 CFR 100-299), except that the tank car tanks's contents exceed the maximum permitted filling density.

8. SPECIAL PROVISIONS.

a. Tank car must be marked DOT-E 10593 in four inch letters on a contrasting background above the DOT Specification number.

b. Movement will be made between Lima, Ohio, and Green Lake, Texas via the CSX- Salem, IL.-UP delivery, a total distance of approximately 1600 miles.

c. This exemption authorizes movement of the following tank car tanks: UTLX 30330, UTLX 30329, UTLX 30316, UTLX 30324, UTLX 99855, PROX 82705, UTLX 30327, PROX 82795, PROX 98801, PROX 82769, PROX 82764, PROX 98889, and TIMX 33433, a total of 13 cars.

d. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

e. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. July 31, 1991.

Issued at Washington, D.C.

sh *Alan I. Roberts*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 1 - 1991

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.